



State of Ohio Administrative Policy

Emergency Purchases

No: PM-02

Office of Procurement Services

Effective:

September 1, 2023

Issued By:

Kathleen C. Madden, Director

I. Purpose

This policy establishes requirements for purchasing supplies and services as a result of either an **Emergency** or a **State Procurement Emergency**. The first occurrence of a defined term in this policy is in bold, italic type, and is hyperlinked to the definition in Section IV.

II. Scope

This policy applies to **State Agencies** superintended with purchasing authority by the Department of Administrative Services (DAS).

III. Policy

State Agencies shall limit purchases to only those items necessary for **Response** and **Recovery** activities during an Emergency or a State Procurement Emergency. This policy is not for a **Public Exigency**, which are managed by the Ohio Facilities Construction Commission (OFCC) in accordance with Ohio Revised Code (ORC) 123.10 and 123.11. State Agencies having questions about or encountering a Public Exigency shall contact OFCC.

A. **Emergencies:** During an Emergency, ORC 125.061(B) allows DAS to suspend the purchasing and contracting requirements of ORC Chapter 125 for the Ohio Emergency Management Agency (EMA) or any State Agency participating in Response and Recovery activities. Additionally, DAS can suspend any requirement of ORC Chapter 153 that would otherwise apply to the State Agency.

1. DAS shall initiate this process when the Director of the Ohio Department of Public Safety (DPS) or the Executive Director of EMA requests a declaration of an Emergency from the Governor of the State of Ohio or the President of the United States.
2. At the same time as this request, the Director of DPS or the Executive Director of EMA shall also send another request to the DAS Director and DAS Chief Procurement Officer (CPO) to suspend purchasing and contracting requirements. The request shall include this information:

- a) The State Agencies for which the purchasing and contracting requirements should be suspended, due to their participation in Response and Recovery activities;
 - b) Details of the Emergency; and
 - c) A description of the supplies or services to be purchased in Response to the Emergency.
3. Purchases shall not be made until DAS reviews and approves the request in accordance with Section C of this policy.
- B. **State Procurement Emergencies:** During a state procurement Emergency, ORC 125.061(C) allows DAS to suspend the purchasing and contracting requirements of ORC Chapter 125 for any State Agency.
1. This process is initiated when either the director or the administrative head of the State Agency where the state procurement Emergency exists submits a request to DAS to suspend purchasing and contracting requirements.
 2. A request to suspend purchasing and contracting requirements shall be sent to the DAS Director and the DAS CPO. The request shall include this information:
 - a) Details of the state procurement Emergency, including a description of its immediacy.
 - b) A description of the item(s) that cannot be acquired through normal procurement methods in a timely manner.
 3. Purchases shall not be made until DAS reviews and approves the request in accordance with Section C of this policy.
- C. **Reviewing Requests to Suspend Purchasing and Contracting Requirements:** DAS is responsible for reviewing and making determinations on requests to suspend purchasing and contracting requirements due to either an Emergency or a State Procurement Emergency.
1. Once a determination is made, DAS shall provide written notice of the outcome to the requesting State Agency.
 2. When a suspension of purchasing and contracting requirements is approved, the DAS Director will notify both the Director of the Office of Budget and Management (OBM) and the members of the Controlling Board.
 3. Purchase requisitions shall be submitted through OhioBuys.
 - a) State Agencies shall follow instructions on “How to Submit an Emergency Purchase Requisition,”(<https://procure.ohio.gov/static/pdf/Agency%20Training/02.18%20Ohio%20Buys%20Submit%20an%20Emergency%20Purchase%20Requisition%20JA%20v2.3.pdf>).
 - b) State Agencies shall obtain a release and permit from DAS and fulfill needs through normal procurement methods whenever practical.
 - c) Emergency or State Procurement Emergency purchases must only be for the amount of time reasonably required for Response and Recovery activities.
 4. When purchasing with a payment card (Pcard), State Agencies shall refer to the State of Ohio Payment Card Policy ([http://finsource.ohio.gov/SAFEManual/index.htm#t=\(SAFE\) State of OhioPayment Card Program.htm](http://finsource.ohio.gov/SAFEManual/index.htm#t=(SAFE)%20State%20of%20Ohio%20Payment%20Card%20Program.htm)).
- D. **Controlling Board Reports:** Within 90 days after an Emergency declaration expires or a State Procurement Emergency concludes, State Agencies that made approved purchases under the

suspension shall file a report with the President of the Controlling Board. The report must describe all purchases made as part of Response and Recovery and include:

1. State Agency name
2. Supplier ID and name
3. Purchase order number
4. Voucher ID
5. An itemized list of what was purchased, including each item's name, cost per unit, total units, and total paid.
6. Total cost for all items purchased.

IV. Definitions

- A. Emergency. Any period of time when an Emergency has been declared or proclaimed by either the Congress of the United States, the President of the United States, and/or the Governor of Ohio.
- B. Recovery. All those activities required and necessary to return an area to its former condition to the extent possible following the occurrence of any hazard.
- C. Response. All those activities that occur after any hazard to remedy the hazard and that provide Emergency assistance from the effects of any such hazard, reduce the probability of further injury, damage, or destruction, and are designed or undertaken to speed Recovery operations.
- D. Public Exigency. An injury or obstruction that has occurred, or there is an immediate danger of occurring, in any public works of the State that materially impairs the public work's immediate use or jeopardizes property adjacent to it.
- E. State Agencies. Every organized body, office, or agency established by the laws of the State for the exercise of any function of State government. It does not include elected State officials, the General Assembly or any legislative agency, a court or any judicial agency, or a State institution of higher education.
- F. State Procurement Emergency. A situation that results from the following: (1) a threat to public health, safety, or welfare; and (2) a serious threat of harm to the functioning of State government, the preservation or protection of property, or the health or safety of any person and therefore creates an immediate and serious need for supplies or services that cannot be met through normal procurement methods.

V. Authority

ORC 107.42, 123.10, 125.061, 5502.21
OAC 123:5-1-01, 123:5-1-03

VI. Resources

Document Name	Location
Controlling Board Manual	https://obm.ohio.gov/areas-of-interest/controlling-board/resources/controlling-board-manual
State Accounting Fiscal Essentials (SAFE) Policy Manual	finsource.ohio.gov/SAFEManual/index.htm#welcome to the safe manual.htm.
State of Ohio Administrative Policy: Purchasing (PM-01)	https://procure.ohio.gov/static/pdf/About_Procurement/Procurement Policies/PM-01%20Purchasing%20Procedures_01172023.pdf
State of Ohio Procurement Manual	https://procure.ohio.gov/about/04_policies/03_state+procurement+manual

VII. Inquiries

Direct inquiries about this policy should be directed to:

Justin Lovett
Chief Procurement Officer/Deputy Chief Counsel
Office of Procurement Services
General Services Division
Ohio Department of Administrative Services
4200 Surface Road, Columbus, Ohio 43228

614-300-9220 | Justin.Lovett@das.ohio.gov

State of Ohio Administrative Policies may be found online at <https://das.ohio.gov/home/policy-finder/filter-policy-finder>.

VIII. Revision History

Date	Description of Change
02/01/2019	Original policy.
02/01/2020	Scheduled review.
03/01/2021	Reviewed and revised. Reformatted to meet agency statewide policy template standards. Links to supporting documents added or updated. Grammatical changes made and numbering sequences revised. Attachments updated.
08/11/2022	Reviewed and revised. Glossary terms revised for “Controlling Board,” “Products,” “Services,” “State Agencies,” and “Supplies.”
04/04/2023	Footnotes with clarifying information added and grammatical updates incorporated throughout. Section numbers updated. Former section 2.1, “Preparing for an Emergency or State Procurement Emergency” deleted. Sections for Emergencies and State Procurement Emergencies updated. Sections for “Reviewing Emergency and State Procurement Emergency

	Requests” and “Purchasing” added. Section “After an Emergency or State Procurement Emergency” renamed “Controlling Board Reports.” Attachment 1 “Suspension of Purchasing and Contract Requirements Letter Template” deleted. Attachment 2 “ORC 125.061 Report – Purchased Made Under Suspended Purchasing and Contracting Requirement During a Declared Emergency – Template” deleted and required report elements incorporated into section 2.5, “Controlling Board Reports.”
09/01/2023	Revised and republished using the updated DAS Statewide Policy Template. Grammatical updates have been made and information previously contained in footnotes has been incorporated into the body of the document. Defined terms for “Controlling Board” and “Purchase” have been removed from the Glossary while “Public Exigency” has been added.